सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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F. No.-S/3-MISC-PRO-516/2013 ACC (I) Part 7 **Date:06.06.2022**

MINUTES OF THE
PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 30.05.2022

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 30.05.2022 at 03:00 P.M. which was chaired by Shri P.V.N. Suresh Babu, Commissioner of Customs (Import). In view of the government advisory regarding "social distancing" and preference for eschewing avoidable movements to combat the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives of various stakeholders participated in the meeting:

Name & designation	**Organization**
Shri Ranjit Kumar, Commissioner (Export & General)	Customs, ACC, Mumbai
Shri Vinay Kumar Arya, Addl. Commissioner (Import)	Customs, ACC, Mumbai
Shri Amit Sharma, Joint Commissioner (General)	Customs, ACC, Mumbai
Ms. Mamta Saini, Jt. Commissioner (Import)	Customs, ACC, Mumbai
Shri Sudhakar Pandey, Jt. Commissioner (Export)	Customs, ACC, Mumbai
Shri Nitish Pathode, Deputy Commissioner, EDI & Import Shed	Customs, ACC, Mumbai
Shri Rajiv Arora, Asstt. Commissioner (PRO, Import)	Customs, ACC, Mumbai
Name of attendees of stakeholders	**Organization**
Shri Kaushal Thakkar, Shri Ketan Desai, Shri Sanjeev, Shri Rahul V Bhojani, Shri Dushyant Mulani, Shri Sorab	BCBA
Mr. R G Meena	PQ
Shri Jayesh S Parab	MACCIA
Shri Nimesh Desai	WISA
Shri Rakesh Burman	WCCB
Shri Sanjay Patankar	BAR CC
Shri Harish Zade	Lufthansa Cargo
Shri Ajay Naik	BAR CC

At the outset, Commissioner of Customs (Import) welcomed the members of Trade, Customs Broker Associations, Representatives of Airlines/Custodian, and other stakeholders present for the virtual meeting.

Following agenda points were taken up:

A. OPEN POINTS FROM LAST PTFC MEETING HELD ON 27.04.2022:

1. Delay in re-imbursement of TDS amount from Air India.

BCBA submitted that AIR INDIA is delaying the re-imbursement of TDS amount since past 2 years. i.e. 2016-17 & 2017-18. BCBA requested to instruct AIR INDIA Authorities not to delay the re-imbursement amount to members.

Mr. Errol D'Souza, Air India had informed that they have noted the point and this point has already been brought to the notice of their Finance Team. Commissioner (G) directed Air India to check it up and give a commitment date to the trade. Air India requested for some time. Mr. Errol D'Souza, Air India informed that they would provide the contact details of their finance team in Delhi who can be contacted by the trade for faster progress in this regard.

In previous meetings, Mr. Kamlesh, AIR India, submitted that they have already escalated this issue to their finance team in Delhi Headquarters and they are already in the process of crediting the TDS amount directly to the account of trade body. Commissioner (I) asked Mr. Kamlesh to inform the finance head of their office to arrange a meeting with BCBA and solve this issue as soon as possible since this issue is pending for so long. Mr. Kamlesh informed that in the mean time, he would share the contact details along with email address so that grievances could be solved quickly. Commissioner (I) further requested Commissioner (G) to take necessary steps to ensure compliance of duties which Air India supposed to do as a Custodian.

Mr. Sanjeev Harale, BCBA submitted that they visited Civil Aviation Ministry in Delhi and informed that all the issues related to Air India were brought to their notice and they have given an assurance that all shortcomings like shortage of staff, machines, work culture etc. would be solved by the month of June, 2022. Moreover. BCBA was also informed that MoCA officers will also visit ACC, Mumbai for further examination of current condition and further course of action. However, no assurance was given for the current TDS related issue.

No one was present on behalf of Air India in the meeting, Therefore, point is kept open for next meeting.

(Point Open)
(Action By: Air India)

2. First time registration of SVB related cases:

BCBA submitted that with Govt. focus on Make in India, there are considerable foreign companies who are investing in India for carrying out their business operations. For clearance of their consignments which involves related party transaction (SVB), the file needs to be sent to SVB Dept. for registration. BCBA submitted that this is taking considerable time at present in carrying out procedural requirement, which was not being insisted earlier. BCBA requested that since import of consignment by Air is always a time bound requirement and hence as per the earlier procedure, whenever first such consignment arrives which requires SVB registration, the file work process may kindly be completed within 2 working days and clearance of import consignment kindly be allowed.

In previous meeting, Mr. Vinay Arya, ADC(I) submitted that there is a board circular no. 05/2016 regarding procedure to be followed in SVB related cases. He submitted that as per the circular, importer needs to file the BE in atleast 15 day's advance so that investigation could be completed in mean time and if required, then only matter to be forwarded to SVB cell. He further suggested BCBA to inform all the importers to file BE in advance. Commissioner (I) directed BCBA to submit the proposal and directed ADC(PRO) and Mr. Vinay Arya, ADC to come out with some relaxations after examination of the proposal, if possible.

BCBA submitted that this problem has been sorted out and requested to close this point.

(Point Closed)

3. **Delay in message exchange between Custodian and Customs**

BCBA submitted that Exports are suffering considerably due to breakdown in CARR messages between Custodian and Customs regularly. In the said regards, BCBA suggested the following:

BCBA submitted that in depth study be carried to resolve the issue of CARR message either with Custodian or Customs and in event of the breakdown, backup mechanism be kindly worked out to process export consignments. BCBA further requested that Custodians should take in advance the "Change of Password" from DG System or it should be AUTO POPULATED as the same is required to be done on fixed interval, It has been noticed in the past in several instances where 1 whole day is lapsed just to retrieve the password, which is required by the Custodian for CARR Message Exchange with ICEGATE and custodian to provide waiver of demurrage charges suo-motto whenever there is breakdown.

In previous meeting, Mr. Nasir, MIAL submitted that their IT manager, Mr. Satish is not present today and they would get back to this point as soon as he comes back. Mr. Nasir further submitted that they would do the needful as per the request of BCBA.

No one was present on behalf of MIAL in the meeting. Therefore, point is kept open for next meeting.

(Point Open)
Action By: MIAL

4. **Payment of Custodian Charges through various modes of payment mandatorily from PD Account of Custom Brokers:**

Cheque facility for BCBA members at ACC Mumbai is in operation since past 45 years. BCBA request to decentralize the mode of payment of the custodian charges, suggest that the payment to custodian must be available via various modes, for example via online payment from CB/IMPORTERS/EXPORTERS through various modes i.e. Cheque, NEFT, RTGS and PD Account. For ease of doing business such facilities are required to be open for the trade. The TRS record can be improved if such facilities are granted to the trade.

In previous meeting, Mr. Nasir, MIAL submitted that they would examine the issue and it's possibility of implementation and inform BCBA according.

No one was present on behalf of MIAL in the meeting, Therefore, point is kept open for next meeting.

(Point Open)
Action By: MIAL

5. **Extremely poor working condition in Air India Import shed leading to huge delay and damage to import cargo:**

There is almost nil development from the AIATSL. This is creating the opportunity of taking advantage in various respect which is finally increasing the cost with delay in clearance of the consignments. There is a shortage of loaders, forklift, staff etc. with poor amenities, further the rainy season had been a nightmares for the trade , BCBA need the proper services from AIATSL before the rainy season. BCBA submitted that have taken up this issue with Air India and Ministry of Civil Aviation.

Mr. Dushyant, BCBA requested AIR India to have a meeting with stakeholders so that all issues pertaining to Air India can be discussed and solved. Mr. Kamlesh, Air India agreed to the same and assured that a meeting in this regard would be held soon.

In point 1, Mr. Sanjeev Harale, BCBA informed regarding this point.

(Point Closed)

6. The trade is facing difficulties in obtaining the balance amount available in the Licenses like MEIS/SFIS etc. The details are not available on ICEGATE, DGFT website.

BCBA requested to provide the facilities to get the print of the license debit sheet.

In previous meeting, Mr. Sudhakar Pandey, JC(X), it would be discussed with commissioner (X) and be informed in next meeting about the outcome and further course of action.

Mr. Sudhakar Pandey, JC(X) informed that this point was also taken in CCFC meeting and submitted that Export Commissionerate in under process of developing a software in which license management will be done and issues related to License would be taken care.

(Point Closed)

B. Fresh Agenda Points:

Sponsored by BCBA-

1. Need for shifting TSK office inside the ACC Building:

BCBA submitted that members are facing difficulty in coordinating work at Appraising Hall and the TKS office which is outside the ACC premises. Further, the approaching monsoon will create more hardships in availing turant services involving important documents. Shifting the TSK office inside the ACC building will enable faster clearance and also improve the TRS rating.

This Point was also raised in PTFC for the month of Oct, 2021 and it was informed to BCBA that it will be done as and when space will be available in ACC. JC(G) Shri Amit Sharma also agreed to the same. Point may be considered for closure.

(Point Closed)

2. Allow to be directly given by group AC/DC in view of lengthy procedure:

The current process for obtaining approvals through a "note sheet" for the late fee waiver, fine up to duty waiver, etc is causing a tremendous delay in import clearances. BCBA requested to shorten this process by group officer directly allowing and thereafter taking AC/DC's approval.

Similar issue was raised in in PTFC for the month of Oct, 2021 Commissioner (I) informed that this is not practically possible as there is office procedure which needs to be followed.

(Point Closed)

3. Request for Additional officers in Export shed during peak hours (This point has also been sponsored by ACAAI):

BCBA requested to depute more officers during peak hours as mostly it has been observed that post 8.00 p.m. there is only one examiner plus suptd. which is causing a delay in the handover of goods post-LEO.

Mr. Sudhakar Pandey, JC(X) informed that they have sufficient no. of staff during peak hours and suggested BCBA to contact AC(Shed) in case of any difficulty faced in this regard. However, they will reassess the staff requirement.

(Point Closed)

4. Examined and OOC given imported goods are not allowed to take delivery after 8 PM by MIAL.

BCBA submitted that the delivery of examined and OOC given imported goods is not being allowed to be taken after 8 p.m. by MIAL. BCBA

requested the deliveries of OOC consignments be allowed 24x7 by the custodian.

No one was present on behalf of MIAL in the meeting, Therefore, point is kept open for next meeting.

(Point Open)
Action By: MIAL

5. Requirement of proper tools for opening & repacking of crates & wooden packages in the sheds:

BCBA submitted that the import /export packages are getting damaged in absence of the latest tools in the shed. In export, the O/D wooden crates which cannot pass through the SCANNING machine are opened by the airlines/custodian for verification/security clearance purposes. At this stage, the packages need to be opened and repacked without damage. However, in absence of proper tools, the cases/crates are getting damaged. We request the custodian to provide proper TOOLS to avoid damages to shipments.

No one was present on behalf of Air India in the meeting, Therefore, point is kept open for next meeting.

(Point Open)
(Action By: Air India)

Sponsored by ACAAI-

6. Staff shortage in Air India is causing severe delays in offloading export trucks:

ACAAI submitted that there is no response to the phone calls and their staff has to run around trying to get some responsible officer from Air India.

ACAAI suggested that that Air India should outsource the offloading function in export truck docks area as they have manpower shortage and their loaders are not available.

In point 1, Mr. Sanjeev Harale, BCBA informed regarding this point.

(Point Closed)

7. ACAAI submitted that segregation of import cargo is taking more than 24 hours. Also telephones are not answered and they find it very difficult to know the status of the shipment.

No one was present on behalf of Air India in the meeting, Therefore, point is kept open for next meeting.

(Point Open)
(Action By: Air India)

8. Any other point with permission of the chair

The meeting ended with a vote of thanks to the Chair.

This is issued with the approval of Commissioner of Customs (General /Import/ Export), Mumbai Customs Zone-III.

09/08/2021

(M. Rammohan Rao)
Addl. Commissioner of Customs (Import)
Air Cargo Complex, Mumbai

COPY TO:

1. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
2. All Addl./Jt. Commissioner of Customs, Import / Export / General, ACC.
3. All members of PTFC meeting including BCBA & ACAAI. (via E-mail)
4. DC/EDI for uploading on ACC website (via E-mail)
5. PGAs, ACC, Mumbai (via E-mail)
6. Office copy.